



MEMORANDUM

TO: Governing Body, City of Cheyenne
FROM: Renee Smith, Grants Manager
DATE: FEBRUARY 6, 2023
SUBJECT: GRANT AGREEMENT FOR THE 18TH ST INTERCEPTOR PROJECT

The City of Cheyenne has been awarded a U.S. Department of Homeland Security (DHS) Federal Emergency Management Agency (FEMA) FY 2021 Hazard Mitigation Grants Program grant for project scoping of the Cheyenne 18th Street Storm Sewer Interceptor Advance Assistance Project.

The federal award amount is \$270,000 with a city match of \$30,000 to be funded from the 1% Special Drainage Account (5th Penny Tax). The performance period for the project is from August 5, 2021 through July 31, 2025.

The main focus of the project area is the lower/downtown portion of the Capitol Basin and represents the final phase required to provide critically needed flood protection and ensure the continued vitality of the community's core business district. Grant funds will be used for hydrologic and hydraulic evaluations, data collection, research, and storm sewer and hydraulic structure design that will be used to draft and submit an implementation grant.

Please let me know if you have any questions or need clarification on this grant agreement.

Renee Smith
307-637-6285
rsmith@cheyennecity.org

cc Thomas Cobb, City Engineer

**GRANT AWARD AGREEMENT BETWEEN
WYOMING OFFICE OF HOMELAND SECURITY
AND
CITY OF CHEYENNE**

Grant Award for U.S. Department of Homeland Security (DHS) Federal Emergency Management Agency (FEMA) Fiscal Year 2021 Hazard Mitigation Grants Program (HMGP), DR-4535.

Subrecipient:	CITY OF CHEYENNE
UEI #:	KURKMKZUFMY2
FEMA Grant ID:	DR-4535-WY
FEMA Award Date:	November 9, 2022
WOHS Grant ID:	21-HMGP-CHE-HM4535-2R
CFDA #:	97.039 – Hazard Mitigation Grant Program
Federal Award Amount:	\$270,000.00
Subrecipient Match Amount:	\$30,000.00
Total Amount:	\$300,000.00
Period of Performance:	August 5, 2021 through July 31, 2025

1. **Parties.** The parties to this Grant Award Agreement (Agreement) are the Wyoming Office of Homeland Security (Agency), whose address is: 5500 Bishop Boulevard, Cheyenne, WY 82002 and City of Cheyenne (Subrecipient), whose address is 2101 O’Neil Avenue, Room 206, Cheyenne, WY 82001.
2. **Purpose of Agreement.** The purpose of this Agreement is to set forth the terms and conditions by which the Subrecipient shall complete project scoping of the Cheyenne 18th Street Storm Sewer Interceptor Advance Assistance Project as described in the Subgrant Project Application, Attachment A, which is attached to and incorporated into this Agreement by this reference. Funding allocated under this Agreement is not for the purpose of research and development as defined by 2 CFR Part 200.87.
3. **Term of Agreement.** This Agreement is effective when all parties have executed it (Effective Date). The Period of Performance of the Agreement is from August 5, 2021 through July 31, 2025. All services shall be completed during the Period of Performance.
4. **Payment.**
 - A. The Agency agrees to pay the Subrecipient for the services described in Section 5 below. Total payment under this Agreement shall not exceed two hundred seventy thousand dollars and zero cents (\$270,000.00). Payment shall be made following receipt of Subrecipient’s reimbursement request with attached backup documentation including invoices and proof of payment. Payment shall be made within forty-five (45) days after submission of invoices and proof of payment pursuant to Wyo. Stat. § 16-6-602. Subrecipient shall submit invoices in sufficient detail to ensure that payments may be made in conformance with this Agreement.

- B. No payment shall be made for work performed before the term of this Agreement. Should the Subrecipient fail to perform in a manner consistent with the terms and conditions set forth in this Agreement, payment under this Agreement may be withheld until such time as the Subrecipient performs its duties and responsibilities to the satisfaction of Agency.
- C. Except as otherwise provided in this Agreement, the Subrecipient shall pay all costs and expenses, including travel, incurred by Subrecipient or on its behalf in connection with Subrecipient's performance and compliance with all of Subrecipient's obligations under this Agreement.

5. **Responsibilities of Subrecipient.** The Subrecipient agrees to:

- A. Perform advance assistance actions as described in Attachment A, Subgrant Project Application.
- B. Comply with terms and conditions as described in Attachment B, Record of Environmental Consideration Report, which is attached to and incorporated into this Agreement by this reference.
- C. Submit quarterly reports outlining the project activity and current project status by the 20th day of the month following each calendar quarter (Jan 20, Apr 20, July 20, Oct 20) as described in Attachment C, Basics for Quarterly Reports form, which is attached to and incorporated into this Agreement by this reference.
- D. Comply with the Hazard Mitigation Assistance Guidance to implement this Grant Agreement, and agrees that all use of funds under this Grant Agreement will be in accordance with the Hazard Mitigation Assistance Guidance.

6. **Responsibilities of Agency.** The Agency agrees to:

- A. Pay Subrecipient in accordance with Section 4 above.
- B. Be available to provide necessary and feasible technical advice, which may be reasonably required by Subrecipient.
- C. Notify Subrecipient of information and updates received from FEMA or other federal agencies which may affect or otherwise restrict the availability of funds awarded to Subrecipient herein.

7. **Special Provisions.**

- A. **Assumption of Risk.** The Subrecipient shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to the Subrecipient's failure to comply with state or federal requirements. The Agency shall notify the Subrecipient of any state or federal determination of noncompliance.

- B. Kickbacks.** Subrecipient certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If Subrecipient breaches or violates this warranty, Agency may, at its discretion, terminate this Agreement without liability to Agency, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.
- C. Monitoring Activities.** Agency shall have the right to monitor all activities related to this Agreement that are performed by Subrecipient or its sub-subrecipients. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of Agreement related work.
- D. No Finder's Fees:** No finder's fee, employment agency fee, or other such fee related to the procurement of this Agreement, shall be paid by either party.
- E. Publicity.** Any publicity given to the projects, programs, or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices in whatever form, prepared by or for the Subrecipient and related to the services and work to be performed under this Agreement, shall identify the Agency as the sponsoring agency and shall not be released without prior written approval of Agency.
- F. Administration of Federal Funds.** Subrecipient agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of 2 C.F.R. Part 200, *et seq.*; any additional requirements set forth by the federal funding agency; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by Agency.
- G. Federal Audit Requirements.** Subrecipient agrees that if it expends an aggregate amount of seven hundred fifty thousand dollars (\$750,000.00) or more in federal funds during its fiscal year, it must undergo an organization-wide financial and compliance single audit. Subrecipient agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and Audit Requirements of 2 C.F.R. Part 200, Subpart F. If findings are made which cover any part of this Agreement, Subrecipient shall provide one (1) copy of the audit report to Agency and require the release of the audit report by its auditor be held until adjusting entries are disclosed and made to Agency's records.
- H. Program Income.** Subrecipient shall not deposit grant funds in an interest bearing account without prior approval of Agency. Any income attributable to the grant funds distributed under this Agreement must be used to increase the scope of the program or returned to Agency.

8. General Provisions.

- A. Amendments.** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed by all parties to this Agreement. Any changes in the Scope of Work shall be addressed as set forth in the Hazard Mitigation Assistance Guidance, which is incorporated into this Agreement by this reference.
- B. Applicable Law, Rules of Construction, and Venue.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms “hereof,” “hereunder,” “herein,” and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- C. Assignment Prohibited and Agreement Shall Not be Used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Agreement without the prior written consent of the other party. The Subrecipient shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of the Agency.
- D. Audit and Access to Records.** The Agency and its representatives shall have access to any books, documents, papers, electronic data, and records of the Subrecipient which are pertinent to this Agreement. The Subrecipient shall immediately, upon receiving written instruction from the Agency, provide to any independent auditor or accountant all books, documents, papers, electronic data, and records of the Subrecipient which are pertinent to this Agreement. The Subrecipient shall cooperate fully with any such independent auditor or accountant during the entire course of any audit authorized by the Agency.
- E. Availability of Funds.** Each payment obligation of the Agency is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation and which may be limited for any reason including, but not limited to, congressional, legislative, gubernatorial, or administrative action. If funds are not allocated and available for continued performance of the Agreement, the Agreement may be terminated by the Agency at the end of the period for which the funds are available. The Agency shall notify the Subrecipient at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to the Agency in the event this provision is exercised, and the Agency shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section.
- F. Award of Related Agreements.** The Agency may award supplemental or successor agreements for work related to this Agreement or may award agreements to other subrecipients for work related to this Agreement. The Subrecipient shall cooperate fully with other subrecipients and the Agency in all such cases.

- G. Compliance with Laws.** The Subrecipient shall keep informed of and comply with all applicable federal, state, and local laws and regulations, and all federal grant requirements and executive orders in the performance of this Agreement.
- H. Confidentiality of Information.** Except when disclosure is required by the Wyoming Public Records Act or court order, all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Subrecipient in the performance of this Agreement shall be kept confidential by the Subrecipient unless written permission is granted by the Agency for its release. If and when Subrecipient receives a request for information subject to this Agreement, Subrecipient shall notify Agency within ten (10) days of such request and shall not release such information to a third party unless directed to do so by Agency.
- I. Entirety of Agreement.** This Agreement, consisting of nine (9) pages; Attachment A, Subgrant Project Application, consisting of eight (8) pages; Attachment B, Record of Environmental Consideration Report, consisting of three (3) pages; and Attachment C, Basics for Quarterly Reports form, consisting of two (2) pages, represent the entire and integrated Agreement between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control.
- J. Ethics.** Subrecipient shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*) and any and all ethical standards governing Subrecipient's profession.
- K. Extensions.** Nothing in this Agreement shall be interpreted or deemed to create an expectation that this Agreement will be extended beyond the term described herein.
- L. Force Majeure.** Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays.
- M. Indemnification.** Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.

- N. Independent Contractor.** The Subrecipient shall function as an independent contractor for the purposes of this Agreement and shall not be considered an employee of the State of Wyoming for any purpose. Consistent with the express terms of this Agreement, the Subrecipient shall be free from control or direction over the details of the performance of services under this Agreement. The Subrecipient shall assume sole responsibility for any debts or liabilities that may be incurred by the Subrecipient in fulfilling the terms of this Agreement and shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Subrecipient or its agents or employees to act as an agent or representative for or on behalf of the State of Wyoming or the Agency or to incur any obligation of any kind on behalf of the State of Wyoming or the Agency. The Subrecipient agrees that no health or hospitalization benefits, workers' compensation, unemployment insurance, or similar benefits available to State of Wyoming employees will inure to the benefit of the Subrecipient or the Subrecipient's agents or employees as a result of this Agreement.
- O. Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing either by regular mail or delivery in person at the addresses provided below:

Contact for the Agency:

Ashley Paulsrud
Grants/Finance Section Chief
5500 Bishop Boulevard
Cheyenne, Wyoming 82009
307-777-4907
Ashley.paulsrud@wyo.gov

With a copy to:

Lynn Budd (Awarding Official)
Director, Wyoming Office of Homeland Security
5500 Bishop Boulevard
Cheyenne, Wyoming 82009
307-777-8511
Lynn.budd@wyo.gov

- P. Ownership and Return of Documents and Information.** Agency is the official custodian and owns all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Subrecipient in the performance of this Agreement. Upon termination of services, for any reason, Subrecipient agrees to return all such original and derivative information and documents to the Agency in a useable format. In the case of electronic transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers.

- Q. Prior Approval.** This Agreement shall not be binding upon either party, no services shall be performed, and the Wyoming State Auditor shall not draw warrants for payment, until this Agreement has been fully executed, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-3204(b)(iv).
- R. Insurance Requirements.** Subrecipient is protected by the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, et seq., and certifies that it is a member of the Wyoming Association of Risk Management (WARM) pool or the Local Government Liability Pool (LGLP), Wyo. Stat. § 1-42-201, et seq., and shall provide a letter verifying its participation in the WARM or LGLP to the Agency. Subrecipient shall also adhere to the Insurance terms set forth in the Hazard Mitigation Assistance Guidance.
- S. Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- T. Sovereign Immunity and Limitations.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming and Agency expressly reserve sovereign immunity by entering into this Agreement and the Subrecipient expressly reserves governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, et seq., and all other applicable law. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.
- U. Taxes.** The Subrecipient shall pay all taxes and other such amounts required by federal, state, and local law, including, but not limited to, federal and social security taxes, workers' compensation, unemployment insurance, and sales taxes.
- V. Termination.** This Grant may be terminated, without cause, by the Agency upon thirty (30) days written notice. This Grant may be terminated by the Agency immediately for cause if the Subrecipient fails to perform in accordance with the terms of this Grant. The parties' rights regarding termination of this Agreement shall also be as set forth in the Hazard Mitigation Assistance Guidance.
- W. Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement.

The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.

- X. Time is of the Essence.** Time is of the essence in all provisions of this Agreement.
- Y. Titles Not Controlling.** Titles of sections and subsections are for reference only and shall not be used to construe the language in this Agreement.
- Z. Waiver.** The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.
- AA. Counterparts.** This Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Agreement. Delivery by the Subrecipient of an originally signed counterpart of this Agreement by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to the Agency.

THE REMAINDER OF THIS PAGE WAS INTENTIONALLY LEFT BLANK.

9. **Signatures.** The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The Effective Date of this Agreement is the date of the signature last affixed to this page.

AGENCY:

Wyoming Office of Homeland Security

Lynn Budd, Director

Date

SUBRECIPIENT:

City of Cheyenne

Patrick Collins, Mayor

Date

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

Brie M. Richardson # 228237
Brie M. Richardson, Assistant Attorney General

12/29/2022
Date

HAZARD MITIGATION GRANT PROGRAM ADVANCE ASSISTANCE PROJECT APPLICATION



Applicant Information

1. **Applicant Legal Name:** City of Cheyenne, Laramie County, Wyoming
2. **Organizational Unit:** City of Cheyenne, City Engineer's Office
3. **Project Title:** 18th Street Storm Sewer Interceptor Project
4. **Applicant Type:** ☒ Local Government ☐ State Government
☐ Private Non-Profit (attach copy of Form 501c3)
5. **Is this a new or revised application?** ☒ New ☐ Revised
If revised, check appropriate box: ☐ Funding Change ☐ Timeline Extension
☒ Change in Scope of Work ☐ Other (specify below):

The City's 18th Street Storm Sewer Interceptor Project is being proposed with a new outlet configuration to take advantage of existing city infrastructure. The Cheyenne 18th Street Storm Sewer Interceptor Project investment is located in downtown Cheyenne, Wyoming and will provide a benefit to many of its citizens and residents of the High Plains Economic Development District which includes Laramie, Albany, Goshen and Platte Counties. The investment will positively impact the region by improving drainage within downtown Cheyenne and the near west side and will protect Cheyenne's core business district from flooding. The proposed flood control infrastructure serves eight of the largest 20 employers in the community's business district with 18,000 employees working in it on a daily basis. We are pursuing Advance Assistance funding at this time to fully scope and finalize the design, prepare a project BCA for pursuit of construction funding, and finalize the design.

6. **Proposed Project Total Cost:** \$ 300,000.00

Federal Share (75.00%): \$ 225,000.00 Local Share (25.00%): \$ 75,000

Certifications:

The undersigned assures fulfillment of all requirements of the Hazard Mitigation Grant Program as contained in the program guidelines and that all information contained herein is true and correct to the best of my knowledge. The governing body of the applicant has duly authorized the document, and hereby applies for the assistance documented in this application. Also, the applicant understands that the project may proceed ONLY AFTER FEMA APPROVAL is gained.

Patrick Collins

Typed Name of Authorized
Representative/Applicant Agent

Mayer

Title

307-637-6300

Telephone Number



Signature of Authorized Representative/Applicant Agent

7-1-22

Date Signed

HAZARD MITIGATION GRANT PROGRAM ADVANCE ASSISTANCE PROJECT APPLICATION



Answers to both 7 and 8 must be "YES" to be considered eligible for HMGP funding.

7. Does your community have a current FEMA approved multi-hazard mitigation plan? ☒ Yes ☐ No

8. Title of the Plan: Wyoming Region 7 Hazard Mitigation Plan

9. Adoption date: 08/01/2017

10. Location of proposed project in mitigation plan strategies: Page 76 Section Cheyenne Projects

11. Is the project type covered in the State 322 Plan: ☒ Yes Page 301 Section WY Mitigation Action Plans

12. Does the community participate in the National Flood Insurance Program (NFIP)? ☒ Yes ☐ No

Is the community in good standing with the NFIP? ☒ Yes ☐ No

13. Tax ID Number: 836000050 FIPS Code (5 digit): 56021
Community ID Number (6 digit): 560030 DUNS Number: 075758169

14. US Congressional District: WY-001 Congressman Name: Liz Cheney

15. State Senatorial District: 8 Senator Name: Affie Ellis

16. State Legislative District: 44 Representative Name: John Romero-Martinez
Representative Name:
Representative Name:
Representative Name:

17. Primary Point of Contact

- The Primary Point of Contact is the person responsible for coordinating the implementation of this proposal, if approval is granted.

☐ Ms. ☒ Mr. ☐ Mrs. First Name: Gene Last Name: MacDonald

Title: Acting City Drainage Engineer

Address Line 1: 2101 O'Neil Ave., Room 206

Address Line 2:

City: Cheyenne State: WY Zip: 82001

Office Phone: 307-626-6268 Mobile Phone: 307-214-7065

Email Address: gene@glmdesigngroup.com



HAZARD MITIGATION GRANT PROGRAM ADVANCE ASSISTANCE PROJECT APPLICATION

**18. Authorized Applicant Agent**

The Authorized Applicant Agent **MUST** be the chief executive officer, mayor, etc. This person must be able to sign contracts, authorize funding allocations or payments, etc.

☐ Ms. ☒ Mr. ☐ Mrs. **First Name:** Tom **Last Name:** Cobb

Title: City Engineer

Address Line 1: 2101 O'Neil Ave., Room 206

Address Line 2:

City: Cheyenne **State:** WY **Zip:** 82001

Office Phone: 307-637-6268 **Mobile Phone:** 307-275-2566

Fax Number: 888-888-8888

Email Address: tcobb@cheyennecity.org

HAZARD MITIGATION GRANT PROGRAM
ADVANCE ASSISTANCE PROJECT APPLICATION



Project Narrative – Advance Assistance

The The City of Cheyenne, a local government located in Laramie County, Wyoming, requests Advance Assistance for DR-4535 pursuant to Section 1104 of the SRIA of 2013 to accelerate implementation of HMGP. The sub-applicant will use Advance Assistance to develop mitigation strategies and obtain data to prioritize, select and develop a future complete HMGP application in a timely manner, as described in the Project Description ([Scope of Work](#)) below.

Scope of Work (Project Description)

List proposed activities, estimate costs and deliverables.

Item	Activity	Deliverable(s)	Estimated Cost	
1	City's Procurement Process to hire a Qualified Consultant	Enter into a contractual agreement with a qualified subconsultant	\$7,500.00	
2	Preliminary Design	30% Design Documents	\$72,400.00	
3	EHP Evaluation	Identification of any environmental and/or historical preservation issues	\$10,000.00	
4	Initial Feasibility/Benefit-Cost Analysis	Preliminary BCA	\$12,500.00	
5	60% Design with Preliminary Engineer's Cost Estimate	60% Design Documents	\$62,100.00	
6	90% Design with Corresponding Costs and BCA	90% Design Documents	\$77,100.00	
7	Bid Documents, Final Engineer's Estimate, Final Project BCA	Bid Documents, Final Engineer's Estimate, Final Project BCA	\$37,800.00	
8	Scoping and Project Meetings	Ongoing Project Meetings	\$10,400.00	
9	Information Review	Data Collection/Model Review	\$10,200.00	
10			\$	
11			\$	
12			\$	
13			\$	
14			\$	
Total Estimated Cost			\$300,000.00	100%

[Redacted]

HAZARD MITIGATION GRANT PROGRAM
ADVANCE ASSISTANCE PROJECT APPLICATION

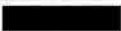


Federal Share	\$ 225,000	75 %
Non-Federal Share	\$ 75,000	25 %

Work Schedule

Following is a schedule of proposed milestones by quarter for all major activities by which the sub-applicant proposes to monitor progress for Advance Assistance:

Quarter	Activity	Milestone	Deliverable
1	Coordination w/ FEMA; Procurement Process; Contract w/ Qualified Consultant	Initial Follow Through w/ FEMA; Consultant Selection	Notice-of-Award Coordination w/ FEMA & Consultant Notice-to-Proceed
2	Preliminary Design/Coordination w/ City Staff & Project Stakeholders	Initial Design Progress & Project Coordination w/ City Staff	Initial Design Progress
3	Preliminary Design; Initial Feasibility/BCA; EHP Evaluation	30% Design Documents	30% Design Documents
4	60% Design w/ Preliminary Cost Estimate	60% Design Documents	60% Design Documents
5	90% Design; Final Cost Estimate; Final BCA; Bid Documents	Final Design	Bid Documents; Final Project BCA
6			
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Estimated Cost Proposal for Cheyenne 18th Street Storm Sewer Interceptor Project

Project Task and/or Subtask	Project Task or Subtask Description	Senior Engineer	Project Engineer	Two-Man Survey Team	Total Labor Costs	Direct and/or Printing Costs	Total Cost
	Estimated Rates per Hour	\$150	\$110	\$190			
1	Scoping and Project Meetings						
A	City's Procurement Process, Kickoff, Project Updates, Stakeholder, Steering Committee, and Final Presentation Meetings	40	40		\$10,400	\$7,500	\$17,900
		40	40		\$10,400	\$7,500	\$17,900
2	Information Review						
A	Data Collection, Research, Existing H&H Model Review, and Information Review	24	60		\$10,200		\$10,200
		24	60		\$10,200		\$10,200
3	Hydrologic and Hydraulic Evaluation 30% Design Documents						
A	Existing Condition Hydrology and SWMM Model Development	72	380	80	\$72,400		\$72,400
B	Alternative Conditions Hydrology and SWMM Model Development	40	200		\$28,000		\$28,000
C	Supplemental modeling including 2D Modeling as necessary	24	160		\$21,200		\$21,200
D	Hydraulic Structures/Cross-sectional/Topographic Survey	24	40		\$8,000		\$8,000
				80	\$15,200		\$15,200
4	Conceptual Alternatives Development 60% Design Documents						
A	Modeling of Conveyance Alternatives Development	213	465		\$83,100	\$1,500	\$84,600
B	EHP Evaluation, Feasibility/Benefit-Cost Analysis	80	200		\$34,000		\$34,000
C	60% Storm Sewer and Hydraulic Structure Design	73	105		\$22,500		\$22,500
		60	160		\$26,800	\$1,500	\$28,100
5	90% Design Documents						
A	90% Storm Sewer and Hydraulic Structure Design	240	360		\$75,600	\$1,500	\$77,100
B	Engineers Opinion of Cost for Recommended Alternatives/BCA Analysis	160	240		\$50,400		\$50,400
		80	120		\$25,200	\$1,500	\$26,700
6	Bid Documents, Final Engineer's Estimate, Final Project BCA						
A	Bid Documents	80	200		\$34,000	\$3,800	\$37,800
B	Final Engineer's Estimate, Final Project BCA	40	120		\$19,200	\$3,800	\$23,000
		40	80		\$14,800		\$14,800
Total Materials and Labor:		669	1505	80	285700	14300	\$300,000

HAZARD MITIGATION GRANT PROGRAM ADVANCE ASSISTANCE PROJECT APPLICATION



Non-Federal Funding Share (25% of Total Project Costs)

List all sources and amounts utilized in the non-federal share including all in-kind services. In-Kind services may not exceed the 25% non-federal share. If any portion of the non-Federal share will come from non-applicant sources (donated services, private donation, etc.), attach letters of funding commitment for each non-applicant source.

Source	Name of Source Agency	Type Funding	Amount	Commitment Letter Attached
City of Cheyenne's 1% Drainage Fund	City of Cheyenne	Dedicated Revenue Source for Drainage Activities	\$75,000.00	☒ Yes ☐ No
			\$	☐ Yes ☐ No
			\$	☐ Yes ☐ No
			\$	☐ Yes ☐ No

Required Documentation Attached

- ☒ Jurisdiction Details Form
- ☒ Detailed budget with narrative
- ☒ Funds commitment letter which lists the sources and amounts utilized in the non-Federal share requirement, including all in-kind services. Fund commitment letters from non-applicant sources.
- ☒ Assurances
 - SF-424b
 - 112-O-3C or 20-16C
 - SF-LLL (only if engaging in lobbying activities)
- ☐ Completed SF-424, signed by the authorized representative of the jurisdiction. (optional for sub-applications in HMGP)
- ☐ Non-Construction Budget (SF-424a) (optional for sub-applications in HMGP)
- ☒ Designated Authorized Agent Documentation, designating the Chief Executive Officer or Mayor, to be able to sign contracts, authorize funding allocations or payments, etc. and signed by the ruling body of the applicant.

Additional Information

HAZARD MITIGATION GRANT PROGRAM ADVANCE ASSISTANCE PROJECT APPLICATION



Provide any relevant information or explanation below.

The provision of critically needed infrastructure will enhance the environment for economic development and job creation. The main focus of this application is the lower/downtown portion of the Capitol Basin and this project represents the final phase required to provide critically-needed flood protection and ensure the continued vitality of the community's core business district. The Capitol Basin covers approximately 11.7 square miles including the downtown business and historic districts, F.E. Warren Air Force Base, the State Capitol complex and the City and County complexes. Additionally, many critical facilities are located within the lower downtown benefit area associated with the 18th Street Project, including the Climb Wyoming Facility, located at 17th Street & Warren; the Cheyenne Transitional Center managed by Avalon Corrections, located at 17th Street & Pioneer; the CRMC Emergent Care facility, located at 18th Street & Van Lennen; the Union Pacific Rail Yard including their diesel pumping area directly south of the historic Union Pacific Depot; Community Action of Laramie County, located at 17th Street & Capitol; and the new Public Safety Building/Emergency Management, located at the corner of 18th Street & Pioneer. The City of Cheyenne is part of the current Wyoming Region 7 Multi-Jurisdictional Hazard Mitigation Plan. The Plan includes mitigation strategies for flood control projects including those planned for the Lower Capital Drainage Basin. Our proposed 18th Street project addresses the following FEMA Community Lifelines; Safety & Security; Community Safety; Shelter; Transportation; and Critical Facilities from life-safety hazards and property damages due to flooding. This project addresses the most critical flood risk for the Capitol Drainage Basin.

[REDACTED]